

§ 325.2. The probable-cause hearing; order of proceeding. 1. The order of a probable-cause hearing held pursuant to section 325.1 or 322.2 shall be as follows:

(a) the presentment agency must call and examine witnesses and offer evidence in support of the charge;

(b) the respondent may, as a matter of right, testify in his own behalf; if the respondent so testifies, his testimony may not be introduced against him in any future proceeding, except to impeach his testimony at such future proceeding as inconsistent prior testimony;

(c) upon request of the respondent, the court shall, except for good cause shown, permit him to call and examine other witnesses or to produce other evidence in his behalf.

2. Each witness, whether called by the presentment agency or by the respondent, must, unless he would be authorized to give unsworn evidence at a fact-finding hearing, testify under oath. Each witness, including any respondent testifying in his own behalf, may be cross-examined.

3. Only non-hearsay evidence shall be admissible to demonstrate reasonable cause to believe that the respondent committed a crime; except that reports of experts and technicians in professional and scientific fields and sworn statements of the kinds admissible at a hearing upon a felony complaint in a criminal court may be admitted, unless the court determines, upon application of the respondent, that such hearsay evidence is, under the particular circumstances of the case, not sufficiently reliable, in which case the court shall require that the witness testify in person and be subject to cross-examination.

4. Such hearing should be completed at one session. In the interest of justice, however, it may be adjourned by the court, but no such adjournment may be for more than one court day.